

1.

CASE #	CASE NAME	HEARING NAME
CVPS2601008	BARONE vs RANCHO MIRAGE SURGERY CENTER	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

Deny as moot in light of the tentative ruling on the intentional fraud cause of action.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2601008	BARONE vs RANCHO MIRAGE SURGERY CENTER	DEMURRER ON COMPLAINT

Tentative Ruling:

Grant Boston Scientific's request for judicial notice of requests 1, 2 and 5; deny as to requests 3, 4 and 5. Exhibits 3 and 4 are not documents prepared by the FDA, but by Boston Scientific. Although Boston Scientific contends that they were approved by the FDA, there is no evidence to support that assertion. Exhibits 1 and 2 are official documents from the federal government and are properly the subject of judicial notice. Exhibit 5 is the warranty referenced by plaintiffs in the complaint (§ 110).

Boston Scientific argues that plaintiffs failed to sufficiently allege that their claims fit the "narrow gap" through which a state law claim must fit to avoid preemption. The distinction between the cases cited by the parties appears to be that allegations of specific federal requirements applicable to the particular medical device at issue are sufficient but that allegations relating only to the cGMPs, which are purposefully broad to apply to a range of medical devices and are intentionally vague and open-ended, cannot serve as the basis for a parallel claim. *Cf. Ilaraza v. Medtronic, Inc.* (2009) 677 F.Supp.2d 582, 588 (discussing cGMPs) and *Mize v. Mentor Worldwide LLC* (2020) 51 Cal.App.5th 850 (not based on allegations concerning cGMPs, but on failure to comply with IDE requirements specific to the product involved). Sustain the demurer to the 1st cause of action, 20 days' leave to amend.

Overrule as to the 2nd, 3rd, 5th, 6th and 8th causes of action.

Sustain as to the 4th cause of action with 20 days' leave to amend.